

July 15, 2026 LAW AND MOTION CALENDAR
JUDGE NICOLE S. HEALY, DEPARTMENT 28

02:00 PM **LINE 8**

25-CIV-01680

NEWTEK SOLUTIONS, INC. VS. SHANE MCBRIDE, ET AL.

NEWTEK SOLUTIONS, INC.
SHANE MCBRIDE

ANDREW C. MCCLELLAND
PRO SE

Order to Show Cause Hearing

TENTATIVE RULING:

This matter is continued to July 29, 2026 at 9:00 a.m.

02:00 PM **LINE 9**

25-CLJ-00490

BLACK DIAMOND PAVER STONES & LANDSCAPE, INC. VS. NAOMI B. TURE, ET AL.

BLACK DIAMOND PAVER STONES & LANDSCAPE, INC.
NAOMI B. TURE

ANTHONY J. KEILEY
ERNEST BROWN

Plaintiff and Cross-Defendant Black Diamond Paver Stones & Landscape, Inc.'s Motion to Change its Attorney of Record

TENTATIVE RULING:

Plaintiff and cross-defendant Black Diamond Paver Stones & Landscape, Inc.'s Motion to Change its Attorney of Record is **GRANTED**.

Plaintiff had been represented by Anthony J. Keiley, III, Esq. (State Bar No. 104578), of the Law Offices of Anthony J. Keiley, III. Mr. Keiley has died and plaintiff seeks an order permitting it to change its attorney of record to Patrick J. Whitehorn, of Last, Faoro & Whitehorn pursuant to Code of Civil Procedure, section 284.

Mr. Keiley was a sole practitioner and had no partners or other co-counsel to take over this case upon his death or sign a substitution of counsel. (Whitehorn Decl., ¶¶ 4-5.) Mr. Whitehorn is an attorney in good standing with the State Bar of California. (*Id.*, ¶ 1.) Plaintiff is a legal entity and cannot appear in court except through counsel. A "corporation may not proceed in propria persona." (*Thomas G. Ferruzzo, Inc. v. Superior Ct.* (1980) 104 Cal.App.3d 501, 504, discussing *Merco Construction Engineers, Inc. v. Mun. Ct.* (1978) 21 Cal.3d 724.) The court therefore grants the motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Mr. Whitehorn shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.
